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Case Number: 24SMCV01724 Hearing Date: September 24, 2026 Dept: 205

Superior Court of California

County of Los Angeles – West District

Beverly Hills Courthouse / Department 205

SHARI ALEC GOLDBERG,

Plaintiff,

v.

THE LIDELL AT 10777 WILSHIRE HOA, et al.,

Defendants.

Case No.: 24SMCV01724

Hearing Date: September 24, 2026

[TENTATIVE] order RE:

DEFENDANT MICHAEL EASTER's

MOTION FOR SUMMARY JUDGMENT

BACKGROUND

This case arises from an assault at a parking garage in a condominium complex. Plaintiff Shari Goldberg and Defendant Michael Easter reside at The Liddel, which is located in Los Angeles, California. (Defendant's Statement of Facts (SOF) 4, 9.) Defendant Sena Sumerlin was Easter's girlfriend and/or fiancée (SOF 6, 7). She is now his wife. Even before they got married, Sumerlin was a frequent guest at the Liddel. Easter gave her a key to use while he was away, and the staff knew she stayed at the unit. ((Additional Material Facts ("AMF") 44.)

On May 4, 2023, Sumerlin brutally attacked Plaintiff. (AMF 111). The attack resulted in severe injuries, requiring multiple brain surgeries that ultimately left her with significant mental deficits.

Sumerlin attacked Plaintiff because of a prior confrontation that took place 15 minutes earlier on the same day. Easter was not present in this prior encounter. The conflict arose when Plaintiff was driving out of the garage at the Liddel when Sumerlin was driving in. (AMF 60.) Mr. Easter's subsequent letter to the Liddel Homeowners Association ("HOA") described the prior encounter as a dispute between Ms. Sumerlin and Plaintiff as to who had the right of way when Ms. Sumerlin was driving down the ramp while Plaintiff was turning to leave the garage about to go up the ramp. (AMF 67.)

Fifteen minutes after their first encounter, Plaintiff returned to the property and drove into the parking garage. (UMF 14; AMF 114.) Sumerlin noticed the approaching car and pointed it out; Easter said he would go talk to Plaintiff. (AMF 93.) Easter asked her to stop, so Plaintiff stopped her car. (AMF 94.) Easter then told Plaintiff that she should slow down. (AMF 95.) Easter held Sumerlin back and moved her "about 10 or 12 feet from the car." (AMF 96.) Easter restrained Sumerlin because he knew she was upset and didn't want the situation to escalate. (AMF 97.)

However, Sumerlin broke free from Easter, went to the driver's window, and punched Plaintiff through the rolled-down window. (AMF 111.) The surveillance video, produced by the Liddel, shows the following: Sumerlin gestured toward Plaintiff's car as it entered, Plaintiff stopped her car and Easter approached her and engaged in conversation, prolonging the encounter; Sumerlin then advanced, and Easter physically blocked her and pushed her away from the car; but Sumerlin broke free and punched Plaintiff through the open driver's window. (AMF 108, 109, 110, 111; Exh. 15.)

Easter claims that Sumerlin never verbalized to him or otherwise indicate that she had any intent to engage in a verbal or physical altercation with Plaintiff or anyone else. He attests that he did not foresee the occurrence of the attack. (SOF 17, 18.) Sumerlin had never been convicted of a felony. (SOF 24.)

Easter also maintains that the Liddel documents incidents concerning threats to safety which occur between persons who are present at the Liddel. And that prior to the occurrence of the attack on Plaintiff, there is no record of any incidents of violence by Sumerlin at the Liddel or any record that she threatened violence or was aggressive at the Liddel. (SOF 26, 27.)

Further, Easter claims that prior to the incident, he never witnessed Sumerlin engage in physical altercation with anyone. (SOF 28.) To his knowledge, prior to the attack on Plaintiff, Sumerlin had never been involved in any physical altercation with anyone at the Liddel or engaged in any confrontational or aggressive behavior toward others at the Liddel. (SOF 29, 30.)

Meanwhile, Plaintiff claims that Easter in fact knew that Sumerlin had been aggressive and threatened violence to an employee at the Liddel. Weeks before the attack on Plaintiff, Sumerlin had threatened Nora Valladares who managed the valet department at The Liddel. (AMF 48.) Valladares had received a complaint about an unidentified vehicle on the property. She approached that vehicle in the visitors' parking area early one morning and identified herself. (AMF 49, 50.) The woman inside, whom she later learned was Sumerlin, "became verbally violent and did not give me an opportunity to speak. I became afraid because she threatened too." (AMF 51.) Sumerlin threatened Valladares with physical violence: "How about if you disappear before I break your face," or "How about you disappear before I kick your ass." (AMF 52.) Easter then came down and apologized on Sumerlin's behalf. (AMF 55.)

Easter states that he does not recall this incident or apologizing to Valladares. (SOF 38.) He also says that while Valladares claims she reported this incident to the general manager, Narveil Fernandez, Fernandez says he has no memory of this report and no documents regarding the incident. (SOF 39, 40.)

Irrespective of Sumerlin's activities at the Liddel, Plaintiff points out that Sumerlin was violent outside of the Liddel, and Easter knew about it. In the year preceding the attack, Easter knew that Sumerlin's ex-husband, Morris Halperin, had a domestic violence restraining order against her. (AMF 100.) He also knew in 2022 that any visitation between Sumerlin and her son had to be monitored by a professional monitor pursuant to court order. (AMF 101.) He knew, by late 2022, of a restraining order obtained by Sumerlin's own former divorce attorney, Steven Weiss, and knew generally that there were other restraining order matters. (AMF 102.) He never asked her about the restraining orders; they "were not important to me." (AMF 105.) He was aware that Sumerlin had been placed on a section 5150 involuntary psychiatric hold around 2018. (AMF 104.) He also knew of Sumerlin's January 2023 arrest for driving under the influence, including a call from her from jail. (AMF 103.)

On May 4, 2023, before Sumerlin assaulted Plaintiff, Easter knew "it was a high anxiety day" as she had received bad news that day and was scheduled to be cross-examined the next day in her divorce trial. (AMF 98.) And he knew the first confrontation that evening followed months of complaints by Sumerlin about Plaintiff's driving: Sumerlin had complained to him that Plaintiff "drives too fast," including a close call in the garage ("She almost hit me"). (AMF 99.)

This hearing is on Easter's motion for summary judgment. Easter argues that he is entitled to summary judgment because he did not owe Plaintiff a duty to protect her against the conduct of a third party (Sumerlin) unless they were in a special relationship, which they were not. Further, Easter argues that even if they were, the factors articulated by the court in *Rowland v. Christian* counsel against finding a duty of care in this case.

LEGAL STANDARD

"[T]he party moving for summary judgment bears the burden of persuasion that there is no triable issue of material fact and that he is entitled to judgment as a matter of law[.] There is a triable issue of material fact if, and only if, the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof." (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.) "[T]he party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact; if he carries his burden of production, he causes a shift, and the opposing party is then subjected to a burden of production of his own to make a prima facie showing of the existence of a triable issue of material fact." (*Id.*)

"On a summary judgment motion, the court must therefore consider what inferences favoring the opposing party a factfinder could reasonably draw from the evidence. While viewing the evidence in this manner, the court must bear in mind that its primary function is to identify issues rather than to determine issues. Only when the inferences are indisputable may the court decide the issues as a matter of law. If the evidence is in conflict, the factual issues must be resolved by trial." (*Binder v. Aetna Life Ins. Co.* (1999) 75 Cal.App.4th 832, 839 [cleaned up].)

Further, "the trial court may not weigh the evidence in the manner of a factfinder to determine whose version is more likely true. Nor may the trial court grant summary judgment based on the court's evaluation of credibility." (*Id.* at 840 [cleaned up]; see also *Weiss v. People ex rel. Department of Transportation* (2020) 9 Cal.5th 840, 864 ["Courts deciding motions for summary judgment or summary adjudication may not weigh the evidence but must instead view it in the light most favorable to the opposing party and draw all reasonable inferences in favor of that party"].)

EVIDENTIARY OBJECTIONS

The Court overrules Plaintiff's Objection Nos. 1-2, and sustains Plaintiff's Objection Nos. 3-4. The Court sustains Defendant's objections to Plaintiff's Exhibits 8, 9, 10, 11 and 13.

DISCUSSION

Easter argues that he did not owe a duty to Plaintiff to guard against the actions of Sumerlin, a third party, because he and Plaintiff were not in a special relationship. In opposition, Plaintiff does not dispute that there is no special relationship here. Instead, she argues that in cases of malfeasance, where a defendant makes a plaintiff's position worse, there is no need to show a special relationship. The Court agrees with Plaintiff.

Each person has the general duty to exercise "reasonable care for the safety of others." (Civ. Code, § 1714, subd. (a).) This general duty to exercise reasonable care does not include a duty to control the conduct of third parties. (Zelig v. County of Los Angeles (2002) 27 Cal.4th 1112, 1129 ["[a]s a general rule, one owes no duty to control the conduct of another, nor to warn those endangered by such conduct"].)

Despite the general rule of no duty with respect to third party conduct, courts have recognized exceptions where certain types of special relationships exist. (Doe v. L.A. County Dept. of Children & Family Services (2019) 37 Cal.App.5th 675, 682, 250 Cal. Rptr. 3d 62 ["A defendant does not owe a legal duty to protect against third party conduct, unless there exists a special relationship between the defendant and the plaintiff."].)

However, the existence of a "special relationship" is not required where a plaintiff alleges a defendant committed malfeasance (or misfeasance), rather than merely nonfeasance. (Pedferri v. Seidner Enterprises (2013) 216 Cal.App.4th 359, 370; Lugtu v. California Highway Patrol (2001) 26 Cal.4th 703, 716-717.) "Misfeasance exists when the defendant is responsible for making the plaintiff's position worse, i.e., defendant has created a risk. Conversely, nonfeasance is found when the defendant has failed to aid plaintiff through beneficial intervention." (Weirum v. RKO General, Inc. (1975) 15 Cal.3d 40, 49.)

Here, Plaintiff argues that Easter made her position worse when he told Plaintiff to stop knowing of the prior conflict between Plaintiff and Sumerlin and that it was a "high anxiety day" for Sumerlin (who was upset about her divorce and potential complications with her pregnancy). He then kept Plaintiff there, to discuss the prior conflict, and he expected Sumerlin would be violent because he restrained her and "didn't want the situation to escalate".

Pamela L v. Farmer (1980) 112 Cal.App.3d 206 is analogous. The case concerned the question of whether a wife was responsible for her husband's molestation of three minor girls. The defendant had invited and encouraged the girls to come to her house to swim, enticed them with refreshments, and assured the parents they would be safe, even though she knew that she would not be home, the children would be alone with her husband, and her husband had molested women and children in the past. Under this set of facts, the court concluded that the defendant had increased the risk of harm to the plaintiff, and there was no requirement to show that the parties were in a special relationship. (Id. at 210.)

So it is here. Easter flagged Plaintiff down, and kept her there, when he knew that Sumerlin who was nearby was upset and hostile towards Plaintiff. He also knew about Sumerlin's violent tendencies. He has carefully crafted his statement of facts to suggest that he did not know of Sumerlin's violent tendencies at the Liddel, but it doesn't matter if she was violent at the Liddel or a block away. What matters is that Easter knew she was violent prior to the incident.

Easter knew that there were several restraining orders against Sumerlin, including one brought by her husband and another divorce attorney. Easter also knew that Sumerlin had been accused of beating up a 75 year old man and putting him in the hospital. Sumerlin was also accused of cruelty to her roommate's pet cat.

Of course, Easter testified that the restraining orders were dismissed and that no charges were brought against Sumerlin, but given the number of these accusations, a jury could reasonably discount Easter's denials and conclude he was aware of Sumerlin's violent tendencies. Indeed, Easter physically restrained Sumerlin during the second encounter with Plaintiff, which a reasonable jury could conclude shows knowledge on his part of Sumerlin's propensity for violence.

Even assuming the relevant standard is Sumerlin's violent tendencies at the Liddel, there is a triable issue as to whether Easter knew that Sumerlin had verbally threatened a Liddel employee with physical violence. Valladares (who works at the Liddel) testified in deposition that Sumerlin threatened to "break her face" or "kick her ass," and Easter later came down to

apologize. He told Valladares: "I'm sorry. That wasn't her [Sumerlin's] intention." An apology suggests that Easter knew of Sumerlin's threat of violence.

Of course, Easter says he doesn't recall making the apology, and that Valladares' testimony was not unequivocal. But these are matters for the jury to resolve. On a defendant's motion for summary judgment, the Court must draw all reasonable inferences in the plaintiff's favor. (*McCoy v. Pacific Maritime Assn.* (2013) 216 Cal.App.4th 283, 299 ["All reasonable inferences must be drawn in favor of the plaintiff [on a defendant's motion for summary judgment] and conflicting evidence is to be disregarded."].)

Easter argues that the Court cannot consider Plaintiff's malfeasance theory because it was not alleged in her Complaint. The Court disagrees.

The original Complaint did not name Easter or Sumerlin. Plaintiff filed amendments to substitute Sumerlin for Doe 1 and Easter for Doe 2. As to Doe Defendants, the original Complaint alleges that each Doe "is negligent, or in some other actionable manner, responsible for the events and happenings hereinafter referred to, and thereby negligently, or in some other actionable manner, legally and proximately caused the hereinafter described injuries and damages to PLAINTIFF GOLDBERG." These allegations are sufficient to encompass a theory of malfeasance.

Even if there was no malfeasance, Plaintiff argues that the Court should still find that a duty exists because Easter voluntarily undertook a duty to come to her aid when he physically restrained Sumerlin. However, Plaintiff has not established all the elements of the voluntary undertaking doctrine.

Under that doctrine, "a volunteer who, having no initial duty to do so, undertakes to provide protective services to another, will be found to have a duty to exercise due care in the performance of that undertaking if one of two conditions is met: either (a) the volunteer's failure to exercise such care increases the risk of harm to the other person, or (b) the other person reasonably relies upon the volunteer's undertaking and suffers injury as a result." (*Delgado*, 36 Cal.4th at p. 249.)

Here, Plaintiff has not made any showing as to what Easter did negligently when he was restraining Sumerlin. The mere fact that Sumerlin was able to break free of Easter's hold does not (by itself) show that Easter was negligent in the way he restrained Sumerlin. Further, Plaintiff has proffered no evidence that she reasonably relied on Easter's restraining of Sumerlin to remain at the scene. She only makes that assertion in her opposition, without evidentiary support. Accordingly, the Court concludes that the voluntary undertaking doctrine does not apply here.

As the Court finds a duty based on malfeasance, it must next consider the policy factors articulated in *Rowland v. Christian* (1968) 69 Cal. 2d 108, 112-113. There, the California Supreme Court set forth a "two-step inquiry". The first step assesses whether there is "a special relationship between the parties or some other set of circumstances giving rise to an affirmative duty to protect." (*Id.*) If either exists, the court moves on to the second step and considers "whether relevant policy considerations counsel limiting that duty" (*Id.*)

These considerations fall into two categories. The foreseeability factors evaluate "the foreseeability of harm to the plaintiff," as well as related concerns such as "the degree of certainty that the plaintiff suffered injury" and "the closeness of the connection between the defendant's conduct and the injury suffered." (*Id.* at 113; accord, *Kuciamba*, 14 Cal.5th at 1021.) The public policy factors examine "the moral blame attached to the defendant's conduct, the policy of preventing future harm, the extent of the burden to the defendant and consequences to the community of imposing a duty to exercise care with resulting liability for breach, and the availability, cost, and prevalence of insurance for the risk involved." (*Rowland*, at 69 Cal.2d at 113; accord, *Kuciamba*, 14 Cal.5th at 1021-1022.)

Different timeframes apply to the two sets of factors. (*Kuciamba*, *supra*, 14 Cal.5th at p. 1022.) The foreseeability factors "are assessed based on information available during the time of the alleged negligence," whereas policy considerations—such as the burdens imposed on defendants—are forward-looking. (*Id.*) Both the foreseeability and the public policy factors are analyzed "at a relatively broad level of factual generality" to determine not whether an exception is warranted in the specific

circumstances of a particular case, but rather “whether carving out an entire category of cases from that general duty rule is justified by clear considerations of policy.” (Id. at 1021.) In short, “the duty analysis is categorical, not case specific.” (Id.)

Here, the injury to a plaintiff was reasonably foreseeable where a defendant stops the plaintiff in front of another person with known violent tendencies who was already upset at the plaintiff for her alleged bad driving, and the defendant reopens an argument that was already a “trigger” for the aggressor.

On the issue of burden, Easter could have avoided the incident by simply not flagging Plaintiff down and reopening the dispute. The burden to him was minimal. Easter argues that finding a duty in this case would create an enormous burden because “condominium owners would effectively be prevented from socializing with their significant others in their own home and prevented from inviting any vaguely bad-tempered friends/acquaintances to their home without incurring potential tort liability for a criminal act by their significant other/guest.” However, finding a duty here does not prevent condominium owners from inviting ill-tempered friends to their homes. Rather, the duty is not to put someone in the path of danger by flagging them down in front of a person with violent tendencies and to discuss a dispute that the defendant knew would upset the aggressor.

The certainty of injury is not disputed here: Plaintiff suffered a traumatic brain injury with multiple surgeries. (Exh. 8, LIDDEL_000836; Exh. 3, Olimpio Depo. 67:14-23.) The connection between the conduct and injury is also clear. Easter asked Plaintiff to stop; she stopped; the argument reopened, and Sumerlin then approached Plaintiff’s open window and struck her twice resulting in a severe brain injury.

Moral blame also attaches to Easter who arguably knew about Sumerlin’s violent tendencies, knew of her disagreements with Plaintiff regarding Plaintiff’s driving, knew Sumerlin was already upset about other personal issues earlier in the day (involving her divorce and possible complications with her pregnancy), and yet he flagged Plaintiff down and put her in the path of danger.

Easter cites to *Romero v. Superior Court* (2001) 89 Cal.App.4th 1068, 1083, which held that “an adult defendant who assumed a special relationship with a minor by inviting the minor into his or her home will be deemed to have owed a duty of care to take reasonable measures to protect the minor against an assault by another minor invitee while in the defendant’s home when the evidence and surrounding circumstances establish that the defendant had actual knowledge of, and thus must have known, the offending minor’s assaultive propensities.” (Id. at 1081.) Here, there are issues of fact as to whether Easter had actual knowledge of Sumerlin’s “assaultive propensities” so *Romero* does not preclude the finding of a duty in this case.

Easter’s other authorities are also distinguishable. In *Melton v. Boustred* (2010) 183 Cal.App.4th 521, 527, homeowner defendant held a party at his residence with live music and alcohol. The party guests were strangers who responded to an open invitation on a social networking site. (Id.) The plaintiffs were party guests who were physically attacked by unknown persons. (Id.) The court found there was no special relationship; i.e. no special between the plaintiffs and the homeowner defendant or between the homeowner defendant and the assailants. (Id. at 533, 536, 541.)

In *Eric J. v. Betty M.* (1999) 76 Cal.App.4th 715, 723-724, 727, the guardian of a minor who was molested by his mother’s boyfriend, a convicted child molester, on premises owned by the boyfriend’s family members, brought a premises liability and negligence action against the family members for failure to warn the minor’s mother of the boyfriend’s convictions. As to the negligence cause of action, the court held that absent a special relationship, one cannot be held liable for mere nonfeasance, such as not protecting another from a criminal attack by a third party.

Both cases involved nonfeasance. In contrast, this case involves malfeasance. This case is not rooted on Easter’s invitation to Sumerlin to have her stay at the Liddel. Rather, it is based on the fact that Easter flagged Plaintiff down and put her in the direct path of danger, knowing of Sumerlin’s violent propensities.

CONCLUSION

Based on the foregoing, the Court DENIES Defendant Michael Easter's motion for summary judgment.

IT IS SO ORDERED.

DATED: September 24, 2026 _____

Edward B. Moreton, Jr.